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The opinion of the judges has no more authority over Congress than the opinion of Congress has over the judges, and on that point the President is independent of both.

Andrew Jackson
7th US president (1829–1837)

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states that the government should not interfere unduly with the rights of an individual. The ruling argued that bakers should have a “right” to negotiate working contracts without the interference of the state and that the Bakeshop Act was therefore

unconstitutional. Judicial opinion was divided on whether the decision represented the Court defending the Constitution or promoting economic and business interests.

Detractors of judicial review argue that it is a role the Supreme Court has taken upon itself and that nowhere has this power of legislative supremacy been overtly described. For this reason, its legitimacy has often been called into question. In many countries (Canada, Australia, and the UK, for example), legislation on contentious issues, such as same-sex marriage or abortion, is decided after parliamentary debate by elected representatives. In the US, issues can be debated in Congress, but the decision of Congress may ultimately be upheld only by the judges. The idea that elected legislatures are to be held to account by unelected judges is, to some, an affront to democracy itself.

More recently, judicial review has been seen as increasingly important in the protection of civil rights, since the Supreme Court can strike down

laws that it believes violate the rights of an individual. For example, in *Brown v. Board of Education of Topeka* (1954), the Supreme Court overturned state laws that allowed the existence of racially segregated schools. And in 2015, the Court ruled that the Fourteenth Amendment requires that all states must legalize same-sex marriage. While these progressive rulings have been held up as examples of the value of judicial review, many scholars point out that, should a president nominate a number of conservative judges to the Supreme Court (as President Trump has done), the balance of power could swing to a more conservative agenda, with the effect that landmark rulings—such as *Roe v. Wade*, which legalized abortion—could be challenged. ■

The present Supreme Court building, in Washington, DC, opened in 1935. Until then, the Court had no permanent home, meeting in various locations over the previous 146 years.

